

NON-DISCLOSURE AGREEMENT (SYNTHETIC — EVAL FIXTURE 2)

This Non-Disclosure Agreement (this “Agreement”) is entered into as of the Effective Date by and between Party A and Party B (collectively, the “Parties”) for the purpose of evaluating a potential business relationship.

1. Term. This Agreement shall remain in effect in perpetuity from the Effective Date. The Agreement may only be terminated by mutual written agreement of the Parties; neither Party has an unilateral right to terminate.

2. Return of Materials. Upon termination of this Agreement, the Receiving Party may, at its option, return or destroy all Confidential Information in its possession, or alternatively, retain such information in accordance with its document retention policies.

3. Confidential Information. “Confidential Information” means any information disclosed by one Party to the other Party, whether orally, in writing, or in any other form, that is designated as confidential at the time of disclosure. The Receiving Party shall treat all such information as confidential.

4. Injunctive Relief. The Parties acknowledge that monetary damages may be inadequate to remedy a breach of this Agreement, and that the non-breaching Party shall be entitled to seek injunctive relief and other equitable remedies to prevent or restrain a breach.

5. Governing Law. This Agreement shall be governed by and construed in accordance with the laws of the Republic of Singapore, without regard to its conflict of laws principles. The Parties consent to the exclusive jurisdiction of the Singapore International Arbitration Centre for any dispute arising hereunder.

6. Residual Knowledge. Nothing herein shall restrict the use of residual knowledge retained in the unaided memory of personnel of the Receiving Party, provided that such personnel do not intentionally memorize or compile Confidential Information for the purpose of circumventing the obligations of this Agreement.

7. Entire Agreement. This Agreement contains the entire agreement between the Parties and supersedes all prior or contemporaneous communications, understandings, and agreements, whether oral or written, between the Parties with respect to the subject matter hereof.